

24STCV29394 24STCV29394

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Case Number: 24STCV29394 Hearing Date: September 9, 2026 Dept: 529

DANIEL BROWN, ET AL. VS FCA US, LLC, ET AL.

DEFENDANT FCA US LLC'S MOTION TO COMPEL DEPOSITION OF PLAINTIFF DANIEL BROWN AND REQUEST FOR PRODUCTION OF DOCUMENTS

Date of Hearing: September 9, 2026 Trial Date: October 28, 2026

Department: 529 Case No.: 24STCV29394

Moving Party: Defendants FCA US LLC and Glendale Chrysler Jeep Dodge Ram

Responding Party: Plaintiffs Daniel Brown and Kimberly Gaeta Brown

BACKGROUND

On November 28, 2024, Plaintiffs Daniel Brown and Kimberly Gaeta Brown filed a complaint against Defendant FCA US LLC and Glendale Chrysler Jeep Dodge Ram for various violations of the Song-Beverly Consumer Warranty Act.

[Tentative] Ruling

Motion to compel deposition of Plaintiff Daniel Brown and Request for Production of Documents is DENIED; Request for sanctions is GRANTED, in the reduced amount.

ANALYSIS

Defendant FCA US LLC moves this court for an order compelling Plaintiff Daniel Brown to appear and testify at their noticed deposition served on May 6, 2026 and produce documents. FCA makes this motion on the grounds Plaintiff failed without substantial justification to appear at their properly noticed deposition and has failed to provide alternative deposition dates upon request. FCA also seeks monetary sanctions against Plaintiff and/or their counsel of record, Larry Chae and Breana Rucker of Strategic Legal Practices, APC (collectively "SLP"), in the amount of \$1,750.00 pursuant to California Code of Civil Procedure § 2023.010, 2023.030, and 2025.450.

Any party may obtain any discovery of information, documents, land, property, or electronically stored information so long as the discoverable matter is not privileged, is relevant to the subject matter and can lead one to admissible evidence. (CCP §2017.010.) "If, after service of a deposition notice, a party to the action ... without having served a valid objection ... fails to appear for examination, ... or to produce for inspection any document, ... described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice." (CCP § 2025.450(a).) A motion brought to compel a deposition "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition ... by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (CCP § 2025.450(b)(2).)

Defendants argue the court should compel Plaintiff's deposition as Plaintiff has failed to appear for their properly noticed deposition and produce documents. Defendant contends Plaintiff and Plaintiff's counsel elected to ignore FCA's good faith attempt to resolve this issue.

In opposition, Plaintiff argues the motion should be denied because the requested deposition has already been scheduled and confirmed. Plaintiff Daniel Brown's deposition will proceed remotely on September 11, 2026, at 2:00 p.m., pursuant to Defendant's amended notice served August 19, 2026 (Pan Decl., ¶¶ 8–10, Exh.1-2.) Plaintiff also notes the original deposition never proceeded because Defendants themselves canceled the deposition before the noticed date (Wang Decl., ¶ 8, Exh. B; Pan Decl., ¶¶ 4–6.) Counsel for Defendant notes Plaintiffs' counsel is finalizing Plaintiffs' responses and production and expects to serve them no later than August 31, 2026, before both the hearing and the agreed deposition. As a result, Plaintiff contends the motion and request for sanctions should be denied.

As the deposition date has now been set, the court denies the motion to compel. However, the court finds sanctions warranted. Defendant has presented evidence that they reached out twice before cancelling the deposition because Plaintiff was non-responsive. The court GRANTS the request for sanctions against Plaintiff and/or Plaintiffs' counsel of record in the reduced amount of \$1,560.00.

The court also notes the opposition was 3 days late. Despite Defendant's argument that the opposition was not timely served, Defendant filed a reply addressing Plaintiff's opposition on the merits. Therefore, there has been no prejudice to Defendant. Plaintiff is admonished to comply with the applicable Rules of Court and Code of Civil Procedure.

Based on the foregoing, the motion to compel deposition of Plaintiff Daniel Brown and Request for Production of Documents is DENIED; the request for sanctions is GRANTED, in the reduced amount.